

25PSCV03506 25PSCV03506

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Case Number: 25PSCV03506 Hearing Date: July 7, 2026 Dept: H

Jollevet v. Hildago-Wohlleben, Case

No. 25PSCV03506

ORDER ON

DEMURRER

Defendant Oliver Hidalgo-Wohlleben's Demurrer

to First Amended Complaint is SUSTAINED, without leave given to amend.

Background

Plaintiff

Dondi DeShawn Jollevet ("Plaintiff") alleges as follows:

Oliver

Hildago-Wohlleben ("Defendant") was, at all relevant times, acting as the campaign manager or senior representative of Congresswoman Alexandria Ocasio-Cortez's political campaign. Plaintiff volunteered with the campaign. Defendant made statements and communications that portrayed Plaintiff as a safety concern or potential threat within the campaign organizing environment.

On

March 23, 2026, Plaintiff filed a First Amended Complaint ("FAC"), asserting causes of action against Defendant and Does 1-20 for: (1) Defamation (Libel/Defamation by Implication) [FN], (2) False Light Invasion of Privacy, and (3) Intentional Infliction of Emotional Distress.

A Case

Management Conference is set for July 7, 2026.

Legal

Standard

A demurrer may be made on the grounds that the pleading, inter alia, does not state facts sufficient to constitute a cause of action and/or is uncertain. (Code Civ. Proc., § 430.10, subds. (e) and (f).)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905 [citations omitted].) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) “[A] demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction placed on an instrument pleaded therein, or facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 [citations omitted].)

Discussion

Defendant

demurs, per Code of Civil Procedure section 430.41, to the first through third causes of action in Plaintiff's FAC, on the basis that they each fail to state facts sufficient to constitute causes of action and are uncertain.

First

Cause of Action (Defamation (Libel/Defamation by Implication))

Libel “is a false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye, which exposes any person to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to injure him in his occupation.” (Civ. Code § 45.) “The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint.” (Kahn v. Bower (1991) 232 Cal.App.3d 1599, 1612, fn. 5.)

Plaintiff

has alleged that he is “informed” and “believes” that unspecified “statements portraying [him] as a safety concern” were circulated to “affiliated progressive organizations and related political networks.” (FAC, ¶ 91.) “[A] pleading made on information and belief is insufficient if it merely asserts the facts so alleged without alleging such information that leads the plaintiff to believe that the allegations are true.” (Gomez v. Countrywide Home Loans, Inc. (2011) 192 Cal.App.4th 1149, 1158-1159 [internal quotations and citation omitted].) As Defendant states, Plaintiff “does not provide specific instances, circumstances, or content of the purported statements made to a third party by any party, let alone by [Defendant] specifically. Nor does he provide facts that support his belief that such statements were made or facts to show he was informed that such statements occurred.” (Dem., 7:12-15.) Plaintiff also fails to factually allege a specific harm stemming from any of the allegedly defamatory statements.

Next, “[i]n a case in which a plaintiff seeks to maintain an action for defamation by implication, the plaintiff must demonstrate that (1) his or her interpretation of the statement is reasonable; (2) the implication or implications to be drawn convey defamatory facts, not opinions; (3) the challenged implications are not “substantially true”; and (4) the identified reasonable implications could also be reasonably deemed defamatory.” (Issa v. Applegate (2019) 31 Cal.App.5th 689, 707.) Plaintiff attempts to allege that unspecified statements could be interpreted to suggest that he “was a recent, unknown volunteer attempting to approach a private location without authorization.” (FAC, ¶ 93.) As Defendant states, “Plaintiff is assigning an interpretation without providing the content or context of any statement, let alone one specifically made by [Defendant].” (Dem., 8:7-8.) Additionally, even if general statements were made to others that Plaintiff was a “security threat,” such a statement would be an opinion based on an assessment of Plaintiff’s behavior towards the congresswoman.

The

Court sustains Defendant’s demurrer to the first cause of action, without leave given to amend.

Second

Cause of Action (i.e., False Light Invasion of Privacy)

“False

light is a species of invasion of privacy, based on publicity that places a plaintiff before the public in a false light that would be highly offensive to a reasonable person, and where the defendant knew or acted in reckless disregard as to the falsity of the publicized matter and the false light in which the plaintiff would be placed.” (Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1264 [internal quotation and citation omitted].) Plaintiff fails to allege facts regarding the circumstances, content, or instances of alleged statements by Defendant. Plaintiff has not alleged any facts as to the element of knowledge or reckless disregard of the falsity of any statements by Defendant.

Additionally,

“[w]hen a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action.” (Eisenberg v. Alameda Newspapers, Inc. (1999) 74 Cal.App.4th 1359, 1385, fn. 13.)

The

Court sustains Defendant’s demurrer to the second cause of action, without leave given to amend.

Third

Cause of Action (i.e., Intentional Infliction of Emotional Distress)

“[T]o state a cause of

action for intentional infliction of emotional distress a plaintiff must show:

(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 160 [quotations and citation omitted].)

For conduct to be

considered “outrageous” it “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (Id. at 160.) Plaintiff has failed to allege any extreme and outrageous conduct by Defendant.

Next, “[s]evere

emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be

expected to endure it.” (Bock v. Hansen (2014) 225 Cal.App.4th 215, 233 [internal quotations and citations omitted].) The allegations pled in Paragraph 102 do not support the element of severe emotional distress.

The

Court sustains Defendant’s demurrer to the third cause of action, without leave given to amend.

[FN] Although the caption of the FAC identifies the first cause of action therein as “Defamation (Libel Per Se),” page 8, lines 9-10 therein identifies the first cause of action as “Defamation (Libel/Defamation by Implication).”